

the extent James' requires contact information for any of the witnesses identified in FROG 17.1 and the Tatums have said contact information, the Tatums are to provide the contact information within 4 days rather than undergo the burden of supplementing the entire FROG 17.1 response.

The court otherwise DENIES the request to compel a further supplemental response to FROG 17.1.

No sanctions are awarded to either party.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500987	VALDEZ VS GUERRERO GARCIA	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

Tentative Ruling:

For RFPs, **GRANT** the motion as to nos. 8, 21, 22, 23, 29, 30, 39, and 40.

For FROGs, **GRANT** the motion as to no. 20.8(a), (b).

Deem the motion MOOT as to no. 12.1(d).

For SROGs, **GRANT** the motion as to nos. 15, 16, 17, 18, 19, 20, and 21.

Deem the motion MOOT as to no. 31.

Plaintiff to provide further responses to the granted requests and interrogatories within 20 days, along with the production of responsive documents and/or privileged logs. No sanctions.

This is an action for personal injury. Plaintiff Annelisse Gutierrez Valdez ("Plaintiff") alleges that she was traveling on I-215 on 10/12/23 when co-defendant Marco Antonio Guerrero Garcia ("Garcia") unsafely changed lanes and collided with the left side of Plaintiff's vehicle. Plaintiff filed this action on 2/12/25. The operative First Amended Complaint ("FAC"), filed 7/2/25, asserts a single cause of action for negligence against Defendants Garcia, Maritza Diaz Lopez ("Lopez"), Guerrero & Son Trucking, and Roadway Engineering & Construction Inc. (collectively, "Defendants").

Defendant/Cross-Complainant Roadway Engineering & Contracting, Inc. (erroneously sued as Roadway Engineering & Construction, Inc., "Defendant") filed a Cross-Complaint against Cross-Defendants Garcia and Lopez, individually and as d/b/a Guerrero & Son Trucking, asserting: (1) implied equitable indemnity; (2) declaratory relief; (3) contribution; and (4) apportionment. Trial is not set.

Now, Defendant has filed three separate motions to compel Plaintiff's further responses to its Requests for Production ("RFPs"), Form Interrogatories ("FROGs"), and Special Interrogatories ("SPROGs"), Set One.

Defendant/Cross-Complainant Roadway moves to compel further responses to its Requests for Production, Set One ("RFPs"), propounded to Plaintiff on 11/3/25. The items in dispute are nos. 8, 21, 22, 23, 29, 30, 39, and 40. Plaintiff served original responses on 1/5/26 and supplemental responses on 2/19/26. Defendant argues that the documents requested are directly relevant to Plaintiff's claims, Defendant's liability, medical damage, the reasonable value of medical services rendered, and the potential bias or financial incentives of her lien-physicians. Defendant asserts that Plaintiff provided incomplete and evasive responses, asserted boilerplate objections, and failed to provide a privilege log. No sanctions are requested, but Defendant requests further responses within 14 days.

In opposition, Plaintiff argues that her objections are well supported, and the requests are overbroad. Plaintiff asserts that the requests concerning medical liens, factoring arrangements, litigation funding, and attorney communications are irrelevant, invade privacy and privileges, and violate the collateral source doctrine. Plaintiff further argues that the bias exploration must be limited to inquiries of the providers themselves and not Plaintiff.

In reply, Defendant asserts that Plaintiff's opposition is filed one day late and should be disregarded, and that Plaintiff has failed to provide any substantive opposition to Defendant's separate statement. Defendant otherwise repeats the arguments from the moving papers.

The meet and confer here is sufficient.

While Plaintiff filed and served the opposition one day late, the court has discretion to consider an untimely-served opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, fn. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) More importantly, in filing a substantive reply, Defendant waived any defect or irregularity in the filing and service of the opposition. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Accordingly, the court gives due consideration to Plaintiff's untimely-served oppositions.

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance. (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.)

As a preliminary statement, to the extent that Plaintiff asserts privacy, attorney-client, work-product, and other privileges, Plaintiff fails to provide any evidence to support the privileges. The party asserting privilege must present facts supporting a

prima facie claim of privilege; only then does the opposing party have the burden of showing that the privilege does not apply, an exception applies, or there was a waiver. (*Oxy Resources California, LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 894.) Nor did Plaintiff provide a privilege log. (Code Civ. Proc., § 2031.240(c)(1).) Other than generic statements in her opposing memorandum, Plaintiff failed to justify her privileges.

RFP no. 8 asks for documents showing if any health care provider “accepted payment for less than the full amount billed.” Good cause is shown. These are relevant to damages and the reasonable value of Plaintiff’s medical treatment. (*Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal.4th 541, 555.) In *Howell*, the court held that “a plaintiff may recover as economic damages no more than the reasonable value of the medical services received and is not entitled to recover the reasonable value if his or her actual loss was less.” (*Id.*) Plaintiff argues that this request violates the collateral source rule, invades her privacy, and is burdensome. However, Plaintiff failed to justify her objections. Under the collateral source rule, “if an injured party receives some compensation for his injuries from a source wholly independent of the tortfeasor, such payment should not be deducted from the damages which the plaintiff would otherwise collect from the tortfeasor.” (*Helfend v. Southern Cal. Rapid Transit Dist.* (1970) 2 Cal.3d 1, 6.) The collateral source rule does not bar discovery of the actual rates accepted by the health care providers. Plaintiff’s other objections are also not supported. The motion should be granted.

Nos. 21, 23, and 29 ask for medical liens, and documents showing the sale of Plaintiff’s medical bills to medical factoring companies. Good cause is shown. These are relevant to Plaintiff’s financial obligation after the rendition of services, and any potential bias or financial incentives on the part of the lien-physicians. (*Katiuzhinsky v. Perry* (2007) 152 Cal.App.4th 1288, 1296-98; *Qadir v. Figueroa* (2021) 67 Cal.App.5th 790, 808.) Plaintiff argues that these requests are overbroad, invade her privacy, and violate the collateral source rule. Again, Plaintiff failed to justify her objections. The medical lien and factoring documents are records of facts and are not premature disclosure of expert opinion. The motion should be granted.

Nos. 22 and 30 ask for documents showing medical/litigation funding Plaintiff received. Good cause is shown. These are relevant to show bias or financial incentives on the part of the lien-physicians. (*Qadir, supra*, 67 Cal.App.5th at 808.) Plaintiff asserts the same objections based on the collateral source, privacy, privilege, and premature expert opinion. Again, Plaintiff failed to justify her objections. Financial and funding arrangements are discoverable to show potential influence on the physicians on how their billed charges were set. Discovery of the same does not violate the collateral source rule. The motion should be granted.

Nos. 39 and 40 ask for documents showing Plaintiff’s counsel’s involvement in approving Plaintiff’s medical treatment, and communications between Plaintiff’s attorneys and the treating physicians. Good cause is shown. These are relevant to show whether the attorney referrals have inflated or directed medical care, which is relevant to the issue of potential bias. (*Qadir v. Figueroa, supra*, 67 Cal.App.5th at 808.) Plaintiff asserts that these requests are vague, ambiguous, overbroad, and are protected by the attorney-client and work-product privileges. Here, Plaintiff failed to

justify her objections or provide a code-compliant privilege log to support her privilege claims. The motion should be granted.

The court **GRANTS** the motion as to RFPs nos. 8, 21, 22, 23, 29, 30, 39, and 40. Plaintiff failed to justify her privacy and privilege objections. Plaintiff to serve further supplemental responses and to produce all responsive documents and/or privilege log in 30 days.

Defendant/Cross-Complainant Roadway also seeks to compel Plaintiff's further responses to Form Interrogatory ("FROG"), Set one, nos. 12.1(d), and 20.8. Defendant argues that the supplemental responses are incomplete, evasive, and fail to provide the speeds of the vehicles before and during the incident. Defendant asserts that if Plaintiff lacks personal knowledge to answer, then she must attest to "a reasonable and good faith effort to obtain the information." No sanctions are requested.

In opposition, Plaintiff argues that she has provided code-compliant responses based on information available. Plaintiff argues that her objections are legitimate and that the collateral source rule bars the discovery into liens, factoring, and funding information. Plaintiff also argues for privacy.

In reply, Defendant argues that Plaintiff's opposition is late and that she has not substantively opposed the motion. Defendant also represents that Plaintiff has supplemented further responses, and the only disputed items now are no. 20.8(a) and (b).

FROG no. 12.1(d) asks for the name, address, and phone number of each individual who has knowledge of the accident. The motion as to this interrogatory is now moot as a response is supplemented.

No. 20.8 asks that Plaintiff state how the incident occurred, giving the speed, direction, and location of each vehicle involved (a) just before, (b) at the time of, and (c) just after the accident. Plaintiff's initial response was that she was traveling at "approximately 65 mph," and later changed her supplemental response to state that she "does not know how fast she was traveling but was going with the speed of traffic" and "does not know how fast Defendant... was traveling." "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220(c).) If Plaintiff does not know her speed, Defendant could not force an answer. However, Plaintiff should make a diligent inquiry to obtain the information and provide her best estimate or state that she has no information available to form an estimate. Plaintiff's responses also failed to completely respond to the subparts of the interrogatory. The motion should at least be granted for a complete and straightforward answer. (*Id.*, § 2030.220(a).)

For Special Interrogatories ("SROGs"), Set One, Defendant argues that Plaintiff must provide further responses to nos. 15, 16, 17, 18, 19, 20, 21 and 31. Defendant argues that information regarding medical liens, medical factoring sales, and litigation

funding are relevant to the claims, damages and defenses, such as proving the reasonable value of medical services and showing potential witness bias or financial incentives of the treating physicians. No sanctions are requested.

In opposition, Plaintiff argues that the interrogatories violate the collateral source rule and seek private financial information. Plaintiff asserts that medical liens, factoring arrangements, and litigation funding are protected and privileged.

In reply, Defendant argues that Plaintiff's privacy objections are unfounded. Defendant argues that physician-patient privilege is not applicable as Plaintiff has put her physical condition at issue. Defendant also represents that Plaintiff has supplemented further responses and the only disputes remaining are nos. 15 through 21.

SROGs nos. 15 through 19 seek to identify treating health care providers "who accepted payment for less than the full amount billed" (no. 15); provider(s) who "has a lien" for services (no. 16); whether medical bills were "sold to a medical factoring company" (no. 17); and if so, the identities of those physicians and factoring companies (nos. 18 & 19). Nos. 20 and 21 asks if Plaintiff has obtained any litigation financing/funding and if so, from which company.

When a plaintiff receives medical care outside of health insurance on a lien basis, "the measure of damages for uninsured plaintiffs who have not paid their medical bills will usually turn on a wide-ranging inquiry into the reasonable value of medical services provided." (*Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal.App.5th 1266, 1275.) In *Qaadir, supra*, 67 Cal.App.5th at 808, the court held that attorney-referral evidence and lien-based physician treatment is relevant to the question of the "reasonable value of the lien-physicians' medical care" because "it may show bias or financial incentives on the part of the lien-physicians." "If a lien-physician wants future referrals from a lawyer and understands that the lawyer benefits from inflating a client's medical bills, that incentive might encourage the lien-physician to inflate its current bill to please the lawyer and win future referrals." (*Ibid.*) Also, in personal injury actions, evidence of all medical expenses incurred, including those above the discounted amounts a company paid to physicians to purchase their bills, was admissible. (*Katiuzhinsky v. Perry, supra*, 152 Cal.App.4th at 1295.) Whether the medical bills or liens were sold to a factoring company at a discount is also relevant to Plaintiff's financial liability, as well as the reasonable value of the services. (*Id.* at 1296-98.)

Without repeating the above, Plaintiff's objections based on collateral source, privacy, attorney-client privilege and attorney work product privilege, and premature expert opinions are not supported. The collateral source rule does not bar discovery into the identities of the health care providers, factoring companies, and the amounts of lien/bills sold. Plaintiff failed to justify any privacy or privileged interest that outweighs Defendant's discovery needs. The court **GRANTS** the motion.